

argument because it was convinced that the rule of law was clear. It also could have rejected the argument on an equally persuasive ground—namely, that the *Harlow* requirement concerning clearly established law applies to *the rule on which the plaintiff relies*, and that there was no doubt about the proposition that a warrantless entry into a home without probable cause is always unlawful.¹³ The court does not even reach the exigent-circumstances inquiry unless and until the defendant has shown probable cause and is trying to establish that the search was legal notwithstanding the failure of the police to obtain a warrant. Thus, if we assume that the Court of Appeals was correct in its conclusion that probable cause had not been established, it was also correct in rejecting petitioner's claim to *Harlow* immunity, either because the exigent-circumstances exception to the warrant requirement was clearly established, or because a warrantless entry into a home without probable cause is always unlawful whether or not exigent circumstances are present.

In this Court, Anderson has not argued that any relevant rule of law—whether the probable-cause requirement

Wroan, 811 F. 2d 1025 (CA7 1987) (police officers denied qualified immunity on summary judgment because their conclusion of probable cause could be found objectively unreasonable when the facts are viewed in light most favorable to the plaintiffs); *Jasinski v. Adams*, 781 F. 2d 843 (CA11 1986) (*per curiam*) (federal agent denied qualified immunity on summary judgment because of genuine issue of probable cause); *Deary v. Three Un-Named Police Officers*, 746 F. 2d 185 (CA3 1984) (police officers denied qualified immunity on summary judgment because of genuine issue of probable cause).

¹³ The Court's opinion reveals little, if any, interest in the facts of this case in which the complaint unquestionably alleged a violation of a clearly established rule of law. Instead, the Court focuses its attention on the hypothetical case in which a complaint drafted by a "passably clever plaintiff" is able to allege a "violation of extremely abstract rights." *Ante*, at 639, and n. 2. I am more concerned with the average citizen who has alleged that law enforcement officers forced their way into his home without a warrant and without probable cause. The constitutional rule allegedly violated in this case is both concrete and clearly established.